

22 February 2022

Mr Jeffrie Trika
10 The Glades
Doncaster VIC 3108

Dear Mr Trika

Complainant	Dr Richard McLean
Case numbers	700088 (Media Super) 747026 (AustralianSuper) & 767480 (TAL Life) 758027 (Bendigo and Adelaide Bank) 785105 (HCF Life Insurance)

I refer to the above complaints lodged with AFCA by Dr McLean.

I understand you are his authorised representative and a Disability and Support Welfare Officer. The purpose of this letter is to inform you that we can no longer consider the above complaints for the reasons set out below.

It is regrettable that we have reached this point given the very difficult personal circumstances of Dr McLean and his ongoing serious health concerns. Since May 2021 we have asked Dr McLean to stop certain conduct however his consistent inappropriate behaviour has left us with no choice but to close his two open complaints and not further consider reopening of the other complaints.

As Executive General Manager – Operational Delivery, my responsibility includes the safety and wellbeing of our people. As an employer we have a duty of care to provide a safe workplace free of threatening, abusive and intimidating behaviour from any party to a complaint.

We had hoped that the appointment of a representative for Dr McLean would assist in this regard. However, despite a number of different representatives during the course of these complaints, and our working with Dr McLean to accommodate his illness, our consistent experience with complaints involving Dr McLean is that his conduct poses an unacceptable risk to our staff.

I have reviewed the correspondence that Mr Peter Fisher (Senior Manager – Superannuation) and Mr Tim Goss (Head of Service Delivery) has sent either directly to Dr McLean or his appointed representatives since 21 May 2021. A copy of this correspondence is enclosed.

Mr Goss' 21 May 2021 letter outlined our concern that Dr McLean's engagement with our people was inconsistent with our engagement expectations. Unfortunately, and despite numerous requests, Dr McLean continued to publicly name AFCA's people. Mr Goss' letter also identified correspondence received from Dr McLean containing offensive statements towards our people which included threats.

Given this, we closed all the above complaints at that time and until he appointed a representative.

Dr McLean appointed a representative in mid-December 2021 and subsequently yourself in mid-January 2022. Upon each appointment, Mr Fisher wrote to the representative to reconfirm our engagement expectations.

Our letter to you dated 13 January 2022 clarified that:

- all contact (written and verbal) on the cases was to be from yourself as the appointed representative,
- we would close any open complaints if Dr McLean made direct contact with AFCA people (given our prior experience with him), or if any contact made on his behalf was inappropriate and inconsistent with our engagement expectations.

On 3 February 2022, AFCA received the attached email from Dr McLean. This is despite stating that all contact to AFCA was to be received from you as Dr McLean's appointed representative.

Additionally, AFCA has observed that Dr McLean has publicly named both Mr Fisher and Mr Goss on his webpage - <https://www.killhim.info/copy-of-ndis-a-cooked-desperation> and has very recently published a video, the content of which relates to our people and is highly inappropriate and defamatory <https://www.youtube.com/watch?v=7443Ck9yPmE>.

This conduct is also in breach of AFCA's Rules that provide for the confidential nature of AFCA's dispute resolution processes.

We are mindful of the extremely difficult circumstances faced by Dr McLean and you. AFCA must balance the needs of complainants with the wellbeing of our people which we take very seriously because we have a duty of care to protect their wellbeing.

It is regrettable that this is the step we now need to take to ensure the safety and wellbeing of our staff. We do believe we have tried to effectively engage with Dr McLean and accommodate his needs, however, even with your and previous assistance of other representatives, our people continue to be publicly named and intimidated.

We have today closed the two open complaints and we will take no further action on any of the complaints referenced at the top of this letter.

We ask that Dr McLean neither telephones or communicates with us in writing nor publishes the names of our people given our role is to consider complaints on a confidential and without prejudice basis. If he elects to do so, we will not respond to any future correspondence and the correspondence will simply be filed. No telephone calls will be returned. However, if you as his representative have a pathway forward, I am happy to talk with you personally on what that might look like. At this stage, we have no option but to cease consideration of the complaints for the wellbeing of our people.

Dr McLean's avenue to pursue these complaints now lie external to our service. At the end of this letter are the contact details for each of the financial firms that Dr McLean can connect with if he wishes to progress the complaints with the financial firms directly.

Yours sincerely

Diana Ennis
Executive General Manager – Operational Delivery
Australian Financial Complaints Authority

Contact points at each financial firm

700088 (Media Super)

- Complaints Team, contactable on operationsteam@mediasuper.com.au

747026 (AustralianSuper) & 767480 (TAL Life)

- Complaints Team, contactable on astrusteeafcacomplaints@australiansuper.com

758027 (Bendigo and Adelaide Bank)

- Customer Advocate Team, contactable on 1300 361 911 or via feedback@bendigoadelaide.com.au
- D'Accord, contactable on 1300 130 130, which is a service provided by the Bank to assist vulnerable customers by providing qualified psychological service and social work referrals

785105 (HCF Life Insurance)

- Feedback and Resolution Team, contactable on lifefeedback@hcf.com.au.